

Balwant Kaur vs Sohan Singh on 28 January, 1993

Equivalent citations: I(1994)DMC572

JUDGMENT

Amarjeet Chaudhary, J.

1. This is wife's appeal against the judgment of Additional District Judge, Barnala, dated 22-10-1991, who had allowed the petition filed by her husband for dissolution of marriage and granted a decree of divorce.

2. The relevant facts of the case are that Sohan Singh husband of the present appellant had filed a petition under Section 9 of the Hindu Marriage Act against her on 16-7-1984 and that petition was decreed on 28-4-1987. Thereafter, the appellant did not resume cohabitation in spite of the decree. The appellant had also filed an application under Section 125 Cr. P.C. on 12-3-1985 in a Court at Mansa and it was allowed on 1-12-1988 but was dismissed by District & Sessions Judge on 28-4-1989 in revision petition filed by the petitioner-husband. The appellant had failed to resume cohabitation even after the passing of decree for restitution of conjugal rights for a period of more than one year before the filing of the petition. It was under the circumstances that the respondent filed a petition for dissolution of marriage by a decree of divorce.

3. The wife had taken the plea that her husband had been pressing her to bring more dowry. As she could not meet his demands, she was beaten and was turned out of the house. A sum of Rs. 1000/- was given by her parents to her husband and she started living with her husband. Thereafter, again, she was given beating and was turned out of the house on 12-1-1991. She is living in the house of her parents since then.

4. The Trial Court on the said pleadings of the parties, framed the following issues :--

(1) What is the effect of the pendency of the appeal taken from the decree dated 28-4-1987 providing for restitution of conjugal rights between the parties passed on the husband's petition moved Under Section 9 of the Hindu Marriage Act, 1956 ? OPR.

(2) Whether there has been no resumption of cohabitation between the parties for a period of more than one year and upward subsequent to the passing of the decree dated 28-4-1987 providing for restitution of conjugal rights between them ? OPP.

(3) Relief.

All the issues were decided against the appellant by the Trial Court. The petition was allowed and a decree for divorce was granted to the husband.

5. I have considered the submissions of the learned Counsel for the parties and find no substance in the submissions of the learned Counsel for the appellant. The law is well settled that time of one year for the purpose of Section 13(1)(ia) of the Hindu Marriage Act starts running from the date of the original decree. In the instant case the decree was passed on 28-4-1987 and period of one year had elapsed on 28-4-1988. The petition under Section 13(1)(ia) of the Hindu Marriage Act was filed on 25-5-1989 i.e. after the expiry of period of one year. There is nothing on the record to show that the appellant ever tried to cohabit with her husband or at any stage had cohabited with him.

6. In view of the above discussion, there is no scope for interference in the well reasoned order of the Trial Court. The appeal consequently fails and is hereby dismissed.